

22NWCV01287 22NWCV01287

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-05

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Case Number: 22NWCV01287 Hearing Date: August 5, 2026 Dept: C

MARTINEZ vs AMERICAN

HONDA MOTOR CO., INC.

CASE

NO.: 22NWCV01287

HEARING: 8/5/26 @ 9:30 AM

#11

TENTATIVE RULING

Defendant AMERICAN

HONDA MOTOR CO., INC.'s Motion to Strike or in the Alternative to Tax Costs is GRANTED in part and DENIED in part. Plaintiff's demand for costs in the amount of \$35,848.79 is reduced by \$7,528.50 for a total of \$28,320.29.

Moving Party to give

NOTICE.

Defendant

AMERICAN HONDA MOTOR CO., INC. (Defendant) moves to strike, or in the alternative, tax costs pursuant to Code Civ. Proc. (CCP), §§ 1032, 1033.5, subds. (a), (c)(2)–(3).

Background

This is a lemon law case. On February 3, 2026,

Plaintiff Yolisma Martinez (Plaintiff) obtained a Jury Verdict in her favor in

the amount of \$31,236.51 against Defendant.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (CCP § 1032(b).)

The losing party may dispute any or all of the items in the prevailing party's memorandum of costs by a motion to strike or tax costs. (CRC 3.1700(b).) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.

(Ladas v. California State Automotive Assoc. (1993) 19

Cal.App.4th 761, 773-774.) On the other

hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Ibid.)

Discussion

WITHDRAWN

COSTS:

Plaintiff concedes two of the six challenged charges were included in error: the duplicate court-reporter charge in the amount of \$2,312.20 and the \$578.20 Jon Minami nonappearance charge, were included in error.

Accordingly, the motion is GRANTED as to Item 12 for court reporter fees in the amount of \$2,312.20, and as to Item 4 for the \$578.20 Jon Minami nonappearance charge.

ITEM 4:

Under section

1033.5, a prevailing party is entitled to the reasonable cost of taking the other party's depositions, unless it appears that taking thereof was unnecessary. (Ceranski v. Muensch (1943) 60 Cal.App.2d 751._

Defendant seeks to tax \$631.00 for the

non-appearance of Defendant's custodian of records. Defendant does not dispute that this cost is recoverable under C.C.P. section 1033.5 (or more broadly as an expense under the Song-Beverly Act) but disputes that it was reasonable. While it is undisputed that Defendant objected to Plaintiff's notice of deposition and informed Plaintiff that they would not attend the deposition, Plaintiff took a formal notice of non-appearance because the custodian of records deposition was important to the case and trial was imminent. Defendant did not provide alternative deposition dates. Therefore, Plaintiff is entitled to reasonable costs for the non-appearance.

The motion to
tax \$631.00 as to Item 4 is DENIED.

ITEM 13:

Section 1033.5 allows recovery only for items
authorized by statute and "reasonably necessary to the conduct of the
litigation."

Defendant seeks to tax \$4,352.60 in travel
fees, \$282.50 private-investigator report, and the \$3.00 "Court Sanctions"
charge.

Travel costs, unless for an authorized
witness, are not recoverable per *Ladas v. California State
Automotive Assoc.* (1993) 19 Cal.App.4th 761, 775-76
["Routine expenses for local travel by attorneys or other firm employees
are not reasonably necessary to the conduct of litigation."].) Therefore,
Plaintiff's unitemized \$4,352.60 "Travel" entry in her Memorandum of Costs
which identifies no traveler or purpose is not recoverable. The remaining fees could
be recoverable in the Court's discretion under CCP § 1033.5(c)(4) if they were
reasonably necessary to the conduct of litigation. The Court finds that they
are not recoverable here. Therefore, the
Court shall strike costs associated with the \$282.50 private-investigator
report and the \$3.00 "Court Sanctions" charge as non-statutory overhead fees.

The motion to
tax \$4,638.10 as to Item 13 is GRANTED.

Accordingly, Plaintiff's

demand for costs in the amount of \$35,848.79 is reduced by \$7,528.50 for a total of \$28,320.29.